

Procedure for handling claims of scientific misconduct

General background

This document describes the procedure for reporting and dealing with allegations of scientific misconduct.

The procedure is rooted in sound scientific practice and its primary aim is to provide support and to remedy potential problems. It is not intended as a disciplinary or judicial procedure. In cases of serious misconduct, however, the Commission on Scientific Integrity may recommend that the KU Leuven Executive Board or (if applicable) the director of the university college involved in consultation with the Vice-Rector of the Group concerned initiate a disciplinary procedure in accordance with the relevant regulations.

Scientific misconduct includes unauthorized use of the intellectual property or contribution of others (including plagiarism, gift authorship, ghost authorship), fabrication or falsification of data, or the intentional publication of unwarranted conclusions.

Such conduct can occur in all stages of research, i.e. while applying for funding, collecting data, constructing a theory, developing software, conducting experiments, processing and analysing data, publishing results, or reviewing the research proposals and publications of others.

Mistakes made in good faith (i.e. "honest errors") and differences of opinion do not raise scientific integrity concerns.

The KU Leuven Association endorses the Belgian national code of research ethics jointly developed by the Académie Royale des Sciences, des Lettres et des Beaux Arts de Belgique, the Académie Royale de Médecine de Belgique, the Koninklijke Vlaamse Academie van België voor Wetenschappen en Kunsten and the Koninklijke Academie voor Geneeskunde van België and supported by the Belgian Science Policy Office (www.kuleuven.be/csi).

The procedure does not cover the following issues

- (a) Ethical issues reviewed by ethical review boards, for instance experiments involving humans or animals or, in biomedical research, issues related to patient-oriented research, such as "informed consent" and the use of patient materials. These are dealt with by the ethical review boards.
- (b) Issues related to the property rights to scientific discoveries and their application, such as patent disputes or conflicts of interest with respect to spin-offs. These are covered by separate regulations and/or a procedure initiated through LRD.
- (c) conflicts between students and teaching staff, including those arising in the context of the Master's thesis (such conflicts should be handled by the ombudsperson and the examination committee)

(d) conflicts between PhD students and their supervisor relating to the supervisor's role (such conflicts should be handled by the PhD ombudsperson and the PhD supervisory committee)

Conduct of the procedure

The procedure can only be initiated if allegations of scientific misconduct are made against a researcher at KU Leuven or at an academic department of a university college within the KU Leuven Association. The procedure is *confidential*, thus safeguarding the interests of all parties.

1. Reporting scientific misconduct

1.1 Instances of possible scientific misconduct should be reported to the *reporting point* at the Research Coordination Office, KU Leuven (contact person: Inge Lerouge , Inge.Lerouge@doc.kuleuven.be). In what follows, the person reporting the misconduct will be referred to as the *notifying party*, whereas the person who is accused of the misconduct will be referred to as the *subject* of the investigation. A procedure can only be initiated against staff and /or researchers employed at KU Leuven or at an academic department of a university college within the KU Leuven Association when the alleged scientific misconduct took place. The limitation period for reporting scientific misconduct is three years from the date when the notifying party first became aware of the misconduct. Exceptionally, the Executive Board may ask the CSI to investigate a report filed beyond the limitation period. A specific case involving the same parties can only be investigated once, unless another notifying party is involved, who is not motivated by self-interest.

1.2 Allegations of misconduct outside the purview of the Commission on Scientific Integrity will be referred to the appropriate body (PhD ombudsperson, ethical review board, LRD, ...) by the reporting point coordinator in consultation with the CSI chair.

1.3 For allegations of misconduct within the purview of the Commission on Scientific Integrity, the CSI chair will decide whether an investigation will be conducted by one, several or all CSI members , depending on the seriousness and scope of the alleged problem.

1.4 The CSI chair informs the notifying party of the specific procedure that will be followed and of who will be in charge of it. CSI members directly or indirectly involved in the matter being reported must not participate in the investigation.

1.5 With regard to the follow-up to the initial report, as described in 1.2 and 1.3, the notifying party has a right of reply, as set out in Section 3, *Right of reply*.

2. Further procedure

In accordance with to 1.3, the procedure will be conducted by one, several or all CSI members. With the formal approval of the chair, these investigators can also involve others in the investigation if this is deemed necessary. All involved in the investigation are bound by strict confidentiality.

2.1 The notifying party is given the opportunity to clarify his/her allegations (first in writing, then in person if necessary) to the CSI investigators.

2.2 If there are no grounds for further action, the investigators issue a *discontinuation report*, stating their reasons for discontinuing the proceedings. If the procedure is conducted by one or more CSI members, they inform the chair about their findings. The chair then informs the notifying party and the reporting point coordinator and gives them access to the discontinuation report, which is confidential.

2.3 If the facts are unclear, the subject(s) can be heard by the CSI investigators (if necessary) to determine whether further steps need to be taken. If there are no grounds for further action (i.e. if no misconduct is found), the investigators issue a *discontinuation report*, stating their reasons for discontinuing the proceedings. The chair then informs the notifying party and the reporting point coordinator and gives them access to the discontinuation report, which is confidential. The procedure should be concluded within a reasonable time.

2.4 If the facts are clear, the investigators will produce a *findings report*, which they forward to the CSI chair.

2.5 If the facts are in dispute, the CSI members in charge will set up an *investigation committee* of independent experts, tasked with producing either a *findings* or a *discontinuation report*. The investigation committee:

- (a) should include at least two members of senior academic staff (ZAP)(or members of research staff at an academic department at a university college in the KU Leuven Association) unrelated to the notifying party or the subject(s) and from a different research unit or research group (not collaborating on a jointly financed research project); the committee may also include outside experts;
- (b) will be briefed by the CSI members in charge of the investigation and provided with specific factual questions concerning the alleged misconduct;
- (c) will hear the parties involved and may ask other employees to assist in the investigation;
- (d) will submit a confidential report to the CSI members in charge of the investigation, with a copy to the reporting point coordinator.
- (e) is bound by strict confidentiality, which also applies to its support staff;
- (f) should complete its activities within a reasonable time.

2.6 The notifying party and the subject(s) are informed of the conclusions of the findings report or the discontinuation report by the CSI investigators or by the CSI chair. This report is also forwarded to the reporting point coordinator. If the procedure has been conducted by one or more CSI members, they first submit the findings report or the discontinuation report to the CSI chair before informing the notifying party or the subject(s) of the investigation. On the recommendation of the Commission for Scientific Integrity or its chair, the findings report may be passed on to the KU Leuven Executive Board or (if applicable) to the director of the university college concerned in consultation with the relevant Vice-Rector with a view to initiating disciplinary proceedings.

2.7 In the case of minor misconduct, the situation is remedied under the supervision of CSI or the CSI members in charge of the procedure. If the investigation has been conducted by one or

several CSI members, they should first consult the chair about the proposed remediation. The outcome of the remediation should be attached to the findings reports.

2.8 In the case of serious misconduct, the Commission for Scientific Integrity will add *recommendations for action* to the findings report . The University's Executive Board or (if applicable) the director of the university college concerned in consultation with the relevant Vice-Rector will then determine what steps need to be taken and whether disciplinary or judicial proceedings must be initiated.

2.9 Both the notifying party and the subject(s) are entitled to view the findings report, as long as confidentiality is maintained. They also have a right of reply to any of the points raised in the findings report.

3. *Right of reply*

The right of reply can be exercised in the following way:

3.1 Both the notifying party and the subject(s) of an investigation are entitled to submit a response to the chair of the Research Policy Board (RPB) within a month of being notified of the report (or its conclusions). The chair of the RPB, in consultation with the Rector and the Vice-Rector of the Group concerned or (if applicable) the director of the university college concerned in consultation with the relevant Vice-Rector, will decide on the further steps to be taken.

4. *External communication*

4.1 All proceedings are confidential. A breach of confidentiality by anyone involved in a CSI investigation will be considered as a serious offence. The CSI chair keeps the chair of the Research Policy Board informed of the investigation being conducted by CSI. The chair of the Research Policy Board, the Rector or a delegate are responsible for external communication.

4.2 The Commission on Scientific Integrity and the reporting point are listed on the KU Leuven Research website (<http://www.kuleuven.be/raadonderzoeksbeleid/en/cwi/index.htm>). This website also outlines the procedures for reporting and handling claims of scientific misconduct.